

M/S Jai Kishan Stone Crusher Karari v. U.P. Electricity Ombudsman And 4 Others

Allahabad High Court · Division Bench · 23 September 2021 · Writ - C No. 20446 of 2021 · **Writ petition dismissed; Forum and Ombudsman orders on the low-voltage billing dispute left undisturbed; alleged subsequent non-revision of bills left to Supply Code remedies**

HEADNOTE

Where a stone-crusher consumer, after concurrent dismissal of billing complaints by the Consumer Grievance Redressal Forum and the U.P. Electricity Ombudsman, challenges those orders in writ on the ground that an MRI report of voltage was not obtained in its presence as required by the U.P. Electricity Supply Code, 2005, the High Court will not interfere. The Ombudsman's order of 15 June 2021 was well reasoned: it considered the MRI and other reports and the Code's provisions on permissible voltage variation, found the low-voltage claim unproved, held that the consumer was not entitled to a bill waiver on that ground, and recorded that under the Code the consumer remains liable for minimum charges during a temporary disconnection for non-payment. A challenge to the MRI procedure first raised in the writ, without having been taken in the appeals before the Ombudsman, is not entertainable. Alleged subsequent failure of the licensee to issue a revised bill as directed by the Ombudsman is a later cause of action for which the consumer may take remedies under the Code. The petition is dismissed.

FACTUAL SUMMARY

M/s Jai Kishan Stone Crusher Karari, a proprietorship with a stone-crushing electricity connection, defaulted from January 2016 to March 2017. A demand of Rs. 6,36,536 followed. Alleging supply below the requisite voltage so that its machines ran on a generator, it filed Complaint No. 154 of 2018 before the Consumer Grievance Redressal Forum, Jhansi. Supply was then temporarily disconnected for non-payment and restored under an interim Forum order on deposit. A further demand of Rs. 25,92,690 led to Complaint No. 04 of 2019.

The Forum dismissed the first complaint on 16 October 2019 (MRI showed voltage drop within permissible limits) and the second on 14 December 2019 (default after the interim restoration). The U.P. Electricity Ombudsman dismissed Appeals Nos. 37 and 38 of 2020 on 15 June 2021, directing waiver of minimum charges for delayed reconnection (June 2020 to 22 September 2020), adjustment of deposits with a revised bill, and instalments as per the Rules. The firm sought certiorari, contending the MRI was not taken in its presence as required by the Supply Code.

HOLDING-UNITS

INTERPLAY · OFFTOPIC::article-226-no-review-of-forum-findings-of-fact

writ court will not disturb a reasoned Ombudsman order on voltage and billing, or entertain an MRI-procedure challenge not taken in the Ombudsman appeal

QUESTION

Will the writ court interfere with concurrent Forum and Ombudsman findings that voltage drop was within permissible Code limits, or entertain a first-time challenge that the MRI was not taken in the consumer's presence?

HOLDING

No. The Ombudsman's order of 15.06.2021 was well reasoned: it considered the reports on record and the Code provisions on permissible voltage variation, heard the petitioner, and held that the low-voltage claim was not made out and that no bill waiver was due. Counsel could not show any legal infirmity. The MRI-procedure challenge (that the report was not obtained in the petitioner's presence as required by the Code) is not entertainable at the writ stage, particularly when it was not taken in the appeals before the Ombudsman (grounds at Annexures 5 and 6). The petition is dismissed. ¶ 5-7, 9

QUALIFIER

The Ombudsman had already directed waiver of minimum charges for delayed reconnection (June 2020 to 22.09.2020), adjustment of deposits with a revised bill, and instalments as per the Rules. The Court treated those directions as a reason not to interfere, not as additional writ relief.

FLAG Numbered paras 1-9. The Court did not cite a clause number for the MRI procedure. Petitioner invoked 'the procedure provided by the U.P. Electricity Supply Code' and presence at the MRI; the Court did not decide whether that procedure applies to an MRI download.

HOLDING-UNIT · UP-2005::(unspecified)

voltage drop within permissible Code limits does not entitle the consumer to evade energy bills or obtain a waiver

QUESTION

Where MRI and other reports show voltage drop within the Code's permissible limits, may the consumer refuse the energy bills and claim that only minimum charges are payable?

HOLDING

No. The Forum dismissed Complaint No. 154 of 2018 on the MRI finding that voltage drop for the disputed period was within permissible limits and that such a minor drop would not entitle the consumer to evade the bills. The Ombudsman, applying the Code's provisions on permissible voltage variation and the reports on record (including reports that the voltage was sufficient to run the machines), held that the low-voltage claim was incorrect and that the petitioner was not entitled to any waiver of bill payment on that ground. The writ court affirmed those findings and dismissed the petition. ¶ 2, 5-6

FLAG The Court referred to 'various provisions of the U.P. Electricity Supply Code, 2005 ... in respect of a permissible variation in voltage etc.' without numbering a clause. Not recast as Clause 7.7.1 (CGRF supply-related category) or as a Standards-of-Performance regulation.

HOLDING-UNIT · UP-2005::4.36

consumer remains liable for minimum charges during temporary disconnection for non-payment

QUESTION

Is a consumer liable under the Code for minimum charges during a temporary disconnection for non-payment of electrical dues?

HOLDING

Yes. After examining the record, the Ombudsman recorded that as per the provisions of the Code the consumer was liable to pay minimum charges during the period of temporary disconnection on account of non-payment of electrical dues, and affirmed the Forum's dismissal of the complaints. The writ court accepted that finding. Separately, the Ombudsman had already directed that the licensee shall not raise minimum charges from June 2020 to 22.09.2020, i.e. from the interim reconnection order until that order was complied with. ¶ 3, 6

FLAG The Court did not number the clause. Keyed to Clause 4.36 as the Code's temporary-disconnection-for-non-payment provision; Clauses 4.37-4.38 (conversion to permanent disconnection) were not discussed. The limited waiver of minimum charges for delayed reconnection is the Ombudsman's direction, not a writ construction.

HOLDING-UNIT · UP-2005::7.10

alleged non-revision of bills after an Ombudsman direction is a subsequent cause of action for Code remedies, not a ground to quash the Ombudsman order

QUESTION

If, after the Ombudsman directs a revised bill, the licensee is said to have billed without properly revising, may that subsequent default be used to quash the Ombudsman order in writ?

HOLDING

No. A supplementary affidavit filed at the hearing contended that the Supply Corporation had raised bills without properly revising them as directed by the Ombudsman. The Court held that if that is so, it is a subsequent cause of action for which the petitioner is free to take recourse to the remedies under the Code. It was not a reason to interfere with the impugned Forum and Ombudsman orders. ¶ 8-9

FLAG The Court said 'remedies under the Code' without numbering a clause. Keyed to Clause 7.10 as the Code's Forum/Ombudsman route; it could equally be a Clause 6.5 bill-correction representation. Not decided which Code remedy applies.

PRINCIPLE TAGS

disputed-questions-of-fact-not-adjudicable-under-article-226 The Forum and Ombudsman had found from the MRI and other reports that voltage drop was within permissible limits and sufficient to run the machines. The writ court would not re-try that fact or disturb those concurrent findings in the absence of demonstrated legal infirmity.

¶ 2, 5-7, 9

plea-not-raised-before-ombudsman-not-entertainable-in-writ The petitioner's challenge that the MRI was not obtained in its presence as required by the Supply Code was not taken in the grounds of Appeals Nos. 37 and 38 of 2020 (Annexures 5 and 6). The Court refused to entertain that plea for the first time in writ. ¶ 4-5, 7

minimum-charges-continue-until-permanent-disconnection The Court accepted the Ombudsman's finding that under the Code the consumer was liable for minimum charges during temporary disconnection for non-payment. A limited waiver already granted by the Ombudsman for the delayed-reconnection window (June 2020 to 22.09.2020) was left standing. ¶ 3, 6

apply-under-supply-code-consider-in-accordance-with-law Alleged subsequent failure of the licensee to issue a revised bill as directed by the Ombudsman was treated as a later cause of action; the petitioner was left to the remedies under the Code rather than given writ relief against the Ombudsman order. ¶ 8

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE MRI REPORT WAS IN FACT OBTAINED IN THE PETITIONER'S PRESENCE, OR OTHERWISE IN ACCORDANCE WITH THE SUPPLY CODE PROCEDURE

The plea was not entertained because it had not been taken before the Ombudsman. The Court did not decide the applicable Code procedure for an MRI. ¶ 4, 7

NOT DECIDED — WHETHER THE LICENSEE HAS SINCE ISSUED A PROPERLY REVISED BILL AFTER ADJUSTMENT OF DEPOSITS AS DIRECTED BY THE OMBUDSMAN ON 15.06.2021

Raised by supplementary affidavit as a subsequent cause of action; left to remedies under the Code. ¶ 8

NOT DECIDED — QUANTUM OF THE REVISED DEMAND AFTER ADJUSTMENT OF DEPOSITS, AND WHETHER INSTALMENTS SHOULD BE GRANTED

The Ombudsman had already directed a revised bill after adjustment and instalments as per the Rules. The writ court did not compute the figure or itself grant instalments. ¶ 3, 9